

Court No. - 29

Writ – C No. 8994 of 2021

Petitioner :- Irfan Ali

Respondents :- U.P. Power Corporation Limited
and others

Counsel for Petitioners :- Kshitij Shailendra

Counsel for Respondent :- Pranjal Mehrotra

Hon'ble Pankaj Naqvi, J.

Hon'ble Piyush Agrawal, J.

Heard Ms. Akanksha Mishra, holding brief of Sri Kshitij Shailendra for the petitioner and Sri Pranjal Mehrotra, learned counsel for the respondents.

This writ petition has been filed, seeking a writ of mandamus, commanding the respondents to supply electricity connection in the name of petitioner at A-13, Gandhi Nagar, Moradabad.

1. The petitioner along with another purchased plot no. A-13 at Gandhi Nagar, Moradabad, measuring 381.51 sq. mtrs. through a registered sale deed dated 3.6.2011. He raised constructions for commercial use over the plot in 2012 and applied for electricity connection of 3 KW power load along with requisite documents and fees and vide a letter dated 17.10.2012 of the Executive Engineer, petitioner was called to submit a certified copy of registered sale deed, which was submitted by him. Again in December, 2017, a certified copy of the sale deed was called for which was once again submitted in

January, 2018, yet no electricity connection was granted. Being aggrieved, he preferred Writ C No. 34409/2018 which came to be disposed of on 16.10.2018 with a direction to the Executive Engineer to consider the request of the petitioner within a month. In compliance, a prepaid connection, on paper, was granted on 25.3.2019 and in connection therewith a sum of Rs.6626 was deposited by the petitioner on 30.3.2019 but to his utter dismay, the impugned order dated 7.5.2019 declining to grant electricity connection has been passed only on the premise that O.S. No. 506/2011, as alleged by one Rajiv Gupta, is pending for cancellation of the said sale deed being fraudulent. The petitioner filed an application dated 19.5.2019 for ventilating his grievance but no heed has been paid till date.

2. The sole ground for refusal to grant electricity connection is a mere pendency of a suit.

3. Learned counsel for the Power Corporation in order to defend the impugned action took refuge under Clause 4.4 of the Electricity Supply Code, 2005.

4. The U.P. Electricity Supply Code, 2005 is a compilation of certain obligations of the licensee vis-a-vis the consumers and specifies the set of practices to provide efficient, cost-effective and consumer friendly service to the consumers inter alia dealing with procedure for new connection and for enhancement or reduction of load. Chapter IV of the Code relates to procedure for grant of supply, Clause 4.1 enumerates the obligations on the licensees to supply electricity.

5. Clause 4.4 provides the procedure for processing of an

application for supply of electricity which is extracted hereinbelow:-

4.4 Processing of Application for Supply:

(a) Application for new connections, in prescribed form (Annexure 4.1) and complete in all respects and accompanied by the prescribed Registration-cum-processing fee, shall be filed in duplicate in the office, specified by the Licensee, along with -attested true copies of the following documents:

(i) Proof of ownership of the premises in the form of registered sale deed or partition deed or succession or heir ship certificate or deed of last will or Proof of occupancy such as valid power of attorney or latest rent paid receipt or valid lease deed or indemnity form as per Annexure 4.2. Order Copy of appropriate court, in case of litigation regarding ownership of the premises, has to be enclosed.

(ii) Approval / permission / NOC of the local authority, if required under any law / statute.

(iii) In case of a partnership firm, partnership deed.

(iv) In case of a Limited Company, Memorandum, articles of Association, Certificate of incorporation and list of Director's / certified addresses.

(v) Work completion and Test certificate, on the prescribed format (Annexure 4.4), given by the licensed electrical contractor can be submitted later but prior to commencement of supply.

(vi) Owner's consent for getting new supply connection. (Annexure 4.3).

(vii) Connections to Jhuggi / hutments / Patri / Shopkeepers shall be given as temporary connection only and shall be engaged through prepaid meters only and the prospective consumer has to provide Aadhar Card / Pan Card / Ration / Voter ID Card / Driving Licence / Bank Account of Nationalized Bank only (one of these). All the papers

issued in regard to this connection will boldly display that the same is a temporary connection and is not a proof of ownership of the said premises.

The conditions mentioned above in sub-clauses (I) to (v) shall not be applicable for the connections released and requested under this sub-clause;

Provided that, these temporary connections shall be up to 2 KW only; it shall be the responsibility of the licensee to ensure electrical safety in such case.

6. Clause 4.4(a)(i) insists on a proof of ownership of the premises in the form of registered sale deed or partition deed or some document of title or a proof of occupancy so that the applicant can maintain an application for grant of a new connection. The additional requirement under the same clause is that in the event there is a pending dispute with regard to the ownership of the premises in a court of law, a document evidencing such dispute be also furnished. Sub-clause (ii) to sub-clause (vi) also provide certain other conditions which are to be complied with by the applicant but presently we are not concerned with them.

7. We after carefully reading the provisions of Clause – 4.4 are of the firm view that nowhere it prohibits the grant of electricity connection to an applicant merely on the ground that there is a pending dispute in respect of property where the electricity connection is sought to be supplied and rightly so as the supply of electricity to the occupant of a house is fundamentally important to live with dignity under Article 21 of the Constitution else it would be a mere animal existence. If we accept the contention of the Power Corporation, the obvious consequence would be that electricity supply would stand

disrupted for the reason that a case relating to property is pending in a court of law. This is neither the legislative intent under the Electricity Act, 2003 nor under the Code as electricity connection does not confer title which fact is also fortified by Note-3 of Annexure 4.1 of the Code which provides that electricity connection shall not be treated as a proof of ownership of the premises. More so it is not the case of Power Corporation that there are any previous outstanding dues in respect of the said premises.

8. We, in view of above, are of the considered view that the impugned disconnection of electricity supply is de hors the law.

9. The writ petition is **allowed**. A mandamus is issued to the respondent concerned to grant electricity connection to the applicant at his premises as indicated above forthwith, subject to other statutory compliance, if any, in accordance with law.

Order Date:- 17.3.2021

Chandra

(Piyush Agrawal, J) (Pankaj Naqvi, J)